

		propria persona is subject to the same restrictive rules of procedure as an attorney. (<i>Kabbe v. Miller</i> (1990) 226 Cal.App. 3d 93, 98.) The Court takes the motion off calendar as it was not properly noticed or served. The Court Clerk is to provide notice of the Court's ruling.
7	30-2026-01577309 Yang vs. Byun	Pending – check back later
8	30-2026-01579273 Gelt Oasis Exchange, LLC vs. Clark	
9	30-2026-01578531 Sanderson J. Ray Apartments Property, LLC vs. Wright	The Court has read and considered the Motion for Stay of Execution of Judgment Pending Appeal by Randal H. Brown II (ROA 40). The Court takes Judicial Notice of the Complaint (ROA 2), Request for Entry of Default (ROA 21), 8/18/2026 Minute Order (ROA 30), Judgment-Unlawful Detainer (ROA 25), Writ of Possession (ROA 32), Ex Parte Application for Stay of Execution of Judgment Pending Appeal (ROA 35), and 8/21/2026 Minute Order (ROA 38). ROA 40 is the same request as ROA 35, except that Mr. Brown crossed out the “ex parte” language before resubmitting it as ROA 40. The Court has already ruled on the substance of the request in the Minute Order of 8/21/2026. As to ROA 40, Mr. Brown failed to provide notice and service of the Motions pursuant to California Code of Civil Procedure section 1005 on opposing counsel. No declaration of service or proof of service is attached. A person appearing in propria persona does not provide a basis for special treatment under the law; “such a party is to be treated like any other party and is entitled to the same but no greater consideration than other litigants and attorneys.” (<i>Barton v. New United Motor Manufacturing, Inc.</i> (1996) 43 Cal.App. 4th 1200, 1210.) Additionally, the Court of Appeal held that a litigant in propria persona is subject to the same restrictive rules of procedure as an attorney. (<i>Kabbe v. Miller</i> (1990) 226 Cal.App. 3d 93, 98.) The Court DENIES Mr. Brown's Motion for Stay of Execution of Judgment Pending Appeal. The Court Clerk is to notify the Orange County Sheriff's Department to proceed with the lockout forthwith. The Court Clerk is to provide notice of the Court's ruling.